

Innate Gamma Private Limited

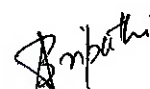
NON-DISCLOSURE AGREEMENT

This MUTUAL NON-DISCLOSURE AGREEMENT (the "Agreement") is made as of _____, between Innate Gamma Private Limited, having a principal place of business at P 3 4 and 5, KH No. 505, Sita Vihar Colony, Jankip, Jankipuram, Lucknow -226021, India and _____ (herein referred to as "Contractor").

1. Purpose. In connection with business purposes between Innate Gamma Private Limited and Contractor relating to business and consulting services, Contractor may receive certain Confidential Information (as defined below) of each other. Innate Gamma Private Limited is willing to provide such Confidential Information to the Contractor only subject to the terms set forth in this Agreement.

2. Definition of Confidential Information. "Confidential Information" means any information, technical data, or know-how (whether disclosed before or after the date of this Agreement), including, but not limited to, information relating to business and product or service plans, financial projections, customer lists, customer (client) information, client data, client drawings, client contacts, client business practices, client organization charts, client applications, business forecasts, sales and merchandising, patents, patent applications, computer object or source code, research, inventions, processes, designs, drawings, engineering, marketing or finance, which information is designated in writing (either at the time of or within thirty (30) days after disclosure) to be confidential or proprietary. Confidential Information does not include information, technical data, or know-how which: (i) is in the possession of the receiving party at the time of disclosure (as shown by the receiving party's files and records prior to the time of disclosure); or (ii) becomes part of the public knowledge or literature, not as a result of any improper inaction or action of the receiving party; or (iii) is subsequently disclosed to the receiving party by a party having the legal right to make such disclosure.

3. Non-disclosure of Confidential Information. Contractor agrees to use Confidential Information only for the purpose of conducting the Innate Gamma's business. The Contractor agrees not to use any Confidential Information for any purpose except in accordance with the terms of this Agreement. Contractor will not disclose or permit disclosure of any Confidential Information of the other to any third party. Contractor agrees to take all reasonable measures to protect the secrecy of and avoid disclosure or use of Confidential Information in order to prevent it from falling into the public domain or the possession of persons other than those persons authorized hereunder to have any such information. Such measures shall include the highest degree of care that the receiving party utilizes to protect its own Confidential Information of a similar nature, which shall be no less than reasonable care. Any materials or documents containing Confidential Information which have been or may be furnished, reproduced or developed by Innate Gamma Private Limited or its clientele will be immediately returned upon Innate Gamma Private Limited's request. Contractor agrees that he shall disclose Confidential Information of the party only to those of its employees who need to know such information and who have previously agreed, either as a condition to employment or in order to obtain the Confidential Information, to be bound by terms and conditions substantially similar to those of this Agreement. Contractor agrees that he will not modify, reverse engineer, decompile, create other works from, or disassemble any software programs contained in the Confidential Information Innate Gamma Private Limited unless otherwise directed in writing by Innate Gamma Private Limited senior management. No new business in the same scope directly or indirectly can be started by the contractor for the next 3 years starting from the date of



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signature.

4. No Rights Granted. Nothing in this Agreement is intended to grant any rights under any patent or copyright of either party, nor shall this Agreement grant either party any rights in or to the other party's Confidential Information, except the limited right to use such Confidential Information in connection with the proposed purpose.

5. Survival. The commitments of each party hereunder shall survive any termination of the purpose between the parties, and shall remain in effect until, and to the extent that, Confidential Information shall enter the public domain through no default by the receiving party of its obligations hereunder.

6. Miscellaneous. Failure to enforce any provision of this Agreement by a party shall not constitute a waiver of any term hereof such party. This Agreement shall be governed by Pune District and Sessions Court, without reference to conflicts of laws rules. This Agreement may be executed in two or more counterparts (which may be delivered by facsimile), each of which shall be deemed an original and all of which together shall constitute one instrument. This Agreement may only be changed by mutual agreement of authorized representatives of the parties in writing.

7. Remedies. Each party agrees that its obligations provided in this Agreement are necessary and reasonable in order to protect the disclosing party and its business, and each party expressly agrees that monetary damages would be inadequate to compensate the disclosing party for any breach by the receiving party of its covenants and agreements set forth in this Agreement. Each party agrees that any violation or threatened violation of this Agreement will cause irreparable injury to the disclosing party and that, in addition to any other available remedies, the disclosing party shall be entitled to obtain injunctive relief against the breach or threatened breach of this Agreement by the receiving party, without the necessity of proving actual damages.

8. Notices. All notices or reports permitted or required under this Agreement shall be in writing and shall be by personal delivery, telegram, telex, telecopy, facsimile transmission, or certified or registered mail, return receipt requested, and shall be deemed given upon personal delivery, five (5) days after deposit in the mail, or upon acknowledgment of receipt of electronic transmission. Notices shall be sent to the addresses set forth at the end of this Agreement or such other address as either may specify in writing.

Banpathi



Innate Gamma Private Limited

IN WITNESS HEREOF, the parties have executed and delivered this Agreement as of the date first stated above.

Contractor:

Address:

City:

State:

Zip:

Signature Date:

Innate Gamma Private Limited

Name: *Abhishek Tripathi*

Title: *Chief Operating Officer*

Signature: *Abhishek Tripathi*

Date:

